ZIVOE – Reg S Compliance

Disclaimer: For Non-U.S. persons and U.S. Accredited Investors at this time only. Providing liquidity involves risks, including complete risk of loss. Please review terms and conditions and consult with an advisor as needed.

Representations, Warranties, and Covenants of User. Each and every Non-U.S. Person or Accredited Investor "(You") who deposits stablecoins to the Offering (as defined below) in exchange for tranche tokens ("Offered Securities" or "Tokens") and who proceeds beyond this point and confirms **"CERTIFICATION,"** makes the following representations and warranties and covenants to Zivoe (the "Company"). These representations, warranties, and covenants shall survive the closing of the Initial Tranche Offering and any subsequent Tranche Offerings (in each case, the "Offering"), and You acknowledge that the Company is relying thereon, that:

(a) Your Principal Address is outside the United States. You are not a U.S. person, as defined in Rule 902 of Regulation S, and you are not acquiring such securities for the account or benefit of any U.S. person.
(b) You acknowledge the Company may offer the Offered Securities only to persons physically located outside the United States. Accordingly, you were located outside of the United States when receiving and executing this Certification, and you have not received an offer to acquire the Offered Securities inside the United States and will not originate a buy order for the Offered Securities from inside the United States.
(c) You have not received, and are not aware of, any advertisement in a publication with a general circulation in the United States (as defined in Rule 902 of Regulation S) that refers to the Offering or the offer or sale of the Offered Securities. You acknowledge that you are not acquiring the Offered Securities as a result of, any "directed selling efforts" (as defined in Rule 902 of Regulation S) in the United States in respect of any of the Offered Securities.
(d) You understand that the Offered Securities are being offered and sold in reliance on the safe harbor of Regulation S under the Securities Act and any applicable state securities laws, and that the Company is relying, in part, on the truth and accuracy of, and Your compliance with, the representations, warranties, and covenants set forth herein to determine the availability of the safe harbor to the Company and the eligibility of You to acquire the Offered Securities.
(e) You agree that:
(i) You will not resell or offer to resell the Offered Securities, or any portion thereof, except in accordance with the terms of this Certification and in accordance with Regulation S;
(ii) the Offered Securities will bear the following legend: "**THIS SECURITY HAS NOT BEEN REGISTERED UNDER THE SECURITIES ACT OF 1933, AS AMENDED (THE "SECURITIES ACT"), OR ANY STATE OR OTHER SECURITIES LAWS. THIS SECURITY MAY NOT BE OFFERED, SOLD, PLEDGED OR OTHERWISE TRANSFERRED EXCEPT PURSUANT TO REGULATION S, AN EFFECTIVE REGISTRATION STATEMENT UNDER THE SECURITIES ACT, OR PURSUANT TO AN EXEMPTION FROM THE REGISTRATION REQUIREMENTS OF THE SECURITIES ACT, AND IN COMPLIANCE WITH ANY APPLICABLE STATE SECURITIES LAWS OR THE APPLICABLE LAWS OF ANY OTHER JURISDICTION. HEDGING TRANSACTIONS INVOLVING THIS SECURITY MAY NOT BE CONDUCTED UNLESS IN COMPLIANCE WITH THE SECURITIES ACT**; and
(iii) the Company will not be required to give effect to any transfer or attempted transfer of the Offered Securities, and will not do so, except in accordance with the foregoing restrictions.
(f) You have received and carefully read this Certification and the Offering. You have relied only on the information provided in the Offering in making your investment decision. You have received

no written or oral representations or information from the Company or any other person that is inconsistent with the Platform and have relied solely on the Offering in making its decision to invest in the Offering.

(g) You have the legal capacity and competence to enter and execute this Certification and to take all actions required pursuant hereto. If You are a corporation, partnership, limited liability company, or other entity, (1) you are duly incorporated or formed and validly subsisting under the laws of its jurisdiction of incorporation, (2) you have duly authorized, executed, and delivered this Certification, (3) this Certification, when duly accepted by the Company, will constitute a legal and binding obligation of You, enforceable in accordance with its terms, except as may be limited by bankruptcy, insolvency, and other laws affecting enforcement of creditors' rights generally, and equitable principles, and (4) the execution and delivery of this Certification by You, and the performance of its obligations thereunder, will not (i) violate the organizational documents or any law, regulation, or court order applicable to you, or (ii) breach, or constitute a default under, any agreement to which you are a party.

(h) You can bear the risks of an investment in the Offered Securities and can afford the loss of your entire investment in the Offered Securities. You have such knowledge and experience in financial, investment and business matters to be capable of evaluating the merits and risks of the prospective investment. You have consulted with such attorney(s), accountant(s), or other adviser(s) as You have deemed appropriate to assist you in evaluating an investment in the Offered Securities. You have such knowledge and experience in financial and business matters as to be capable of evaluating the merits and risks of investment in the Offered Securities and invest in or acquire securities similar to the Offered Securities in the normal course of your business(es).

(i) You acknowledge that the information contained in the Offering and this Certification, and in all related and ancillary documents provided to You for the Offering, may constitute material nonpublic information, and agree to keep all such information confidential (except for any disclosure to Your counsel, accountants, and investment representatives, if any, for the purpose of evaluating an investment in the Offered Securities), and will not reproduce or disclose any such information to any other person, or use such information for any purpose other than an investment in the Offered Securities, except as required by law or order of a court of competent jurisdiction or regulatory agency or authority.

(j) You understand and acknowledge that because you are acquiring the Offered Securities in an offering intended to be exempt from registration under the Securities Act, certain protections, rights, and remedies applicable to investors participating in registered offerings may not be available to you.

(k) You acknowledge that the Offered Securities have not been and will not be registered under the Securities Act, and the Company has no intention or obligation to register any Offered Securities under the Securities Act or any applicable state securities laws, or to take any action so as to otherwise facilitate offers and sales of the Offered Securities by You (including pursuant to Rule 144 under the Securities Act). You acknowledge and agree that unless registered under the Securities Act, the Offered Securities may be sold or otherwise transferred only pursuant to an exemption from, or in a transaction not subject to, the registration requirements of the Securities Act, and in each case in accordance with applicable laws of any state or other jurisdiction.

(l) You acknowledge and understand that no agency, governmental authority, securities commission or similar regulatory body, stock exchange, or other entity, including the U.S. Securities and Exchange Commission or any state securities agency, has reviewed, passed on, or made any finding or determination as to the merits of an investment in the Offered Securities, nor has any such agency or governmental authority made any recommendation or endorsement with respect to the Offered Securities.

(m) You understand and understand that there may be material tax consequences to you of acquiring, holding, or disposing of the Offered Securities, and that the Company gives no opinion and makes no representation with respect to the consequences to You under any U.S. federal, state, or local tax law, or under any applicable non-U.S. tax law, of the acquisition, holding, or disposition of the Offered Securities, and You acknowledge that you are solely responsible for determining the tax consequences of an investment in the Offered Securities.

(n) You acknowledge and understand that there are risks associated with an investment in the Offered Securities, including, by way of example and not in limitation, the risks identified in the Offering, and that You could incur the loss of your entire investment in the Offered Securities.

(o) You acknowledge and understand that the Offering reflects the Company's current intentions and business, financial, and other information currently available to the Company, and that the precise nature of the Company's operations, use of proceeds of the Offering, capital needs, and other factors inherent in the Company's business can be expected to change from time to time.

(p) You will, if required by applicable securities legislation, regulations, rules, policies, or orders, or by any securities commission, stock exchange, or other regulatory authority, execute, deliver, file, and otherwise assist the Company in filing, such reports, undertakings, and other documents with respect to the issuance of the Offered Securities.

(q) You certify that each of the foregoing representations and warranties set forth in this Certification is true as of the date hereof and will be deemed to be reaffirmed and confirmed on the date of execution, and shall survive the execution of this Agreement.

(r) You understand and acknowledge that there may be restrictions and certain conditions imposed by applicable law on any sale and /or resale of any interest acquired, directly or indirectly, from the issuer of such interests (or from an affiliate of such issuer). You understand that the Company provides no assurances and has no obligation as to whether You or any acquirer of the Offered Securities will be able to resell any or all of the Offered Securities pursuant to applicable law, which may require, among other things, that the Company be subject to certain reporting requirements, that resales of interests take place only after certain specified time periods and/or after the interests are registered or exemptions from registration are available, and under certain circumstances, that resales of interests be limited in volume and take place only pursuant to brokered transactions.

(s) You hereby represent that you have satisfied yourself as to the full observance of the laws of your jurisdiction in connection with any invitation to subscribe for or otherwise acquire the interests in the Company or any use of this Certification, including (i) the legal requirements within your jurisdiction for the acquisition or purchase of the interests, (ii) any foreign exchange restrictions applicable to such acquisition, (iii) any governmental or other consents that may need to be obtained, and (iv) the income tax and other tax consequences, if any, that may be relevant to the acquisition, holding, redemption, sale, or transfer of the interests. Your subscription and payment for and continued beneficial ownership of the Tokens will not violate any applicable securities or other laws of your jurisdiction.

(t) You hereby acknowledge that the Company and its representatives seek to comply with all applicable laws concerning money laundering and similar activities, and, in furtherance of such efforts, You hereby represent and agree that: (i) none of the cash or property that is paid or contributed to the Company by You will be derived from, or related to, any activity that is deemed criminal under United States law; (ii) no contribution or payment to the Company by You will cause the Company or its representatives to be in violation of the United States Bank Secrecy Act, the United States Money Laundering Control Act of 1986 or the United States International Money Laundering Abatement and Anti-Terrorist Financing Act of 2001; and (iii) You are not engaged in money laundering; further, you represent and warrant to the Company as follows:

(i) Neither You, nor any person with any direct or indirect interest in You, or for whom You are an affiliate or acting as agent or nominee in connection with the Company is: (A) a country, territory, organization, person or entity named on the U.S. Treasury Department's Office of Foreign Assets Control ("OFAC") list; (B) a person or entity that resides or has a place of business in a country or territory named on such list or which is designated as a Non-Cooperative Jurisdiction by the Financial Action Task Force on Money Laundering ("FATF"), or whose subscription funds are transferred from or through such a jurisdiction; (C) a "Foreign Shell Bank" within the meaning of the USA PATRIOT Act, i.e., a foreign bank that does not have a physical presence in any country and that is not affiliated with a bank that has a physical presence and an acceptable level of regulation and supervision; (D) a person or entity that resides in or is organized under the laws of a jurisdiction designated by the Secretary of the Treasury under Section 311 or 312 of the USA PATRIOT Act as warranting special measures due to money laundering concerns; or (E) a person or entity who is within the scope of Executive Order 13224-"Blocking Property and Prohibiting Transactions with Persons who Commit, Threaten to Commit, or Support Terrorism", effective September 24, 2001 (each of (A) through (E), a "Prohibited Non-U.S. Person");

(ii) To the extent required by applicable law, you authorize and permit the Company and its representatives to report information about You to appropriate authorities, and You agree not to hold them liable for any loss or injury that may occur as the result of providing such information;

(iii) You agree to provide any additional information deemed necessary by the Company (or any bank or other entity doing business with the Company) to comply with its obligations under the USA PATRIOT Act or other anti-money laundering laws; and

(iv) You understand and agree that You are not entitled to sell, donate, pledge or transfer in any other way any Offered Securities to a Prohibited Non-U.S. Person.